

CHAPTER 31.

An Act to amend the Law relating to the marriage of
persons with their nephew or niece by marriage.

[31st July 1931.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Marriage
with certain
persons not
to be void as
a civil con-
tract except
in certain
cases.
7 Edw. 7.
c. 47.

1.—(1) Section one of the Deceased Wife's Sister's Marriage Act, 1907 (hereinafter referred to as "the principal Act"), shall have effect as if there were inserted therein after the words "or between a man and his deceased brother's widow" the words "or between a man and any of the following persons; that is to say :—

- " (1) his deceased wife's brother's daughter;
- " (2) his deceased wife's sister's daughter;
- " (3) his father's deceased brother's widow;
- " (4) his mother's deceased brother's widow;
- " (5) his deceased wife's father's sister;
- " (6) his deceased wife's mother's sister;
- " (7) his brother's deceased son's widow;
- " (8) his sister's deceased son's widow."

(2) Section four of the principal Act shall have effect as if there were therein substituted for the words "with his deceased wife's sister or his deceased brother's widow" the words "which would have been void or voidable but for the provisions of this Act as amended by any subsequent enactment."

(3) The principal Act shall, so far as it relates to marriages authorised by this Act, have effect as though it had been passed at the date of the passing of this Act.

Conse-
quential
amend-
ment of

2. Section one hundred and eighty-four of the Supreme Court of Judicature (Consolidation) Act, 1925 (which relates to the re-marriage of divorced persons),

shall have effect as if for the proviso to subsection (1) thereof there were substituted the following proviso (that is to say) :—

15 & 16
Geo. 5. c. 49.
s. 184.

“ Provided that it shall not be lawful for a
“ man to contract any marriage which, upon the
“ decease of any person, would be authorised by
“ the Marriage (Prohibited Degrees of Relation-
“ ship) Acts, 1907 to 1931 (as amended by any
“ subsequent enactment) but which would other-
“ wise have been void or voidable by reason of
“ affinity, during the lifetime of that person.”

3.—(1) This Act may be cited as the Marriage (Prohibited Degrees of Relationship) Act, 1931, and this Act and the Marriage (Prohibited Degrees of Relationship) Acts, 1907 and 1921, may be cited together as the Marriage (Prohibited Degrees of Relationship) Acts, 1907 to 1931. Short title.

(2) References in this Act to the principal Act shall be construed as references to that Act as amended by the Deceased Brother's Widow's Marriage Act, 1921, and this Act shall be construed as one with those Acts. 11 & 12
Geo. 5. c. 24.

(3) Subsection (3) of section one of the Deceased Brother's Widow's Marriage Act, 1921, is hereby repealed.

(4) This Act shall not apply to Northern Ireland.

CHAPTER 32.

An Act to repeal subsection (3) of section sixty-one of the Road Traffic Act, 1930, and to correct an error in section one hundred of that Act. [31st July 1931.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. Subsection (3) of section sixty-one of the Road Traffic Act, 1930 (which provides that certain motor vehicles if used or allowed to be used without reward for carrying eight or more passengers are to be treated as contract carriages) shall cease to have effect. Repeal of
s. 61 (3) of
20 & 21
Geo. 5. c. 43.